

Rajendra Bahadur Singh v. State of U.P. — PuVVNL demand remitted to clause 6.5

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · Writ-C No. 4107 of 2022 · WRIT - C No. 4107 of 2022 · **Writ disposed of without merits; liberty to file a clause 6.5 objection to the Rs 3,30,174 demand, to be decided within four weeks of filing; no coercive action for eight weeks or until that decision, whichever is earlier.**

HEADNOTE

A writ seeking to quash a Purvanchal Vidyut Vitaran Nigam Limited demand of Rs 3,30,174 and to restrain coercive recovery was disposed of without any opinion on merits. On the licensee's statement that an objection would be decided in a time-bound manner, the Court granted liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 within four weeks, directed that any such objection be decided in accordance with law within the next four weeks after hearing, and stayed coercive action on the demand for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Rajendra Bahadur Singh filed a writ at the Allahabad High Court seeking certiorari to quash a demand notice dated 7 February 2020 issued by the Executive Engineer, Purvanchal Vidyut Vitaran Nigam Limited, Prayagraj, for Rs 3,30,174, and a mandamus restraining coercive recovery of those electricity dues. Counsel for the distribution licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed demand — clause 6.5 objection as alternate remedy

HOLDING

Without expressing any opinion on merits, the writ against a PuVVNL demand of Rs 3,30,174 was disposed of with liberty to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed, the objection shall be decided in accordance with law within the next four weeks after hearing, and no coercive action shall be taken on the demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The writ against the electricity demand was closed without a merits decision and the consumer was sent to a Para 6.5 objection. ¶ 1

6.5-representation-as-appropriate-remedy On the licensee's statement, a clause 6.5 objection was treated as the proper time-bound path for the disputed demand. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The Rs 3,30,174 demand was left to be examined under Para 6.5 of the Supply Code, 2005, not on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE DEMAND NOTICE DATED 07.02.2020 FOR RS 3,30,174

The Court expressly declined to express any opinion on the petitioner's case and left the demand to a clause 6.5 objection. ¶ 1

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.